

Bihar Legal Metrology (Enforcement), Rules, 2014

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State of Bihar - Act

Bihar Legal Metrology (Enforcement), Rules, 2014

BIHAR

India

Bihar Legal Metrology (Enforcement), Rules, 2014

Rule BIHAR-LEGAL-METROLOGY-ENFORCEMENT-RULES-2014 of 2014

Published on 21 July 2014

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Bihar Legal Metrology (Enforcement), Rules, 2014

Published vide Notification No. 07/ weights-Measures (Legal)/2010 - 3274, dated 21.7.2014

Last Updated 15th February, 2020

No. 07/ weights-Measures (Legal)/2010 - 3274. - In exercise of the powers conferred under section 53 of The Legal Metrology Act, 2009 after consultation with the Central Government, The State Government makes the following Rules:-

1.

Short title extent & commencement.

(1)

These rules may be called The Bihar Legal Metrology (Enforcement), Rules, 2014

(2)

They extend to the whole of the State of Bihar.

(3)

They shall come into force on such date as the State Government may, by notification, appoint and different dates may be appointed for:

(a)

different provisions of these rules; or

(b)

different areas; or

(c)

different classes of activities.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

" Act" means the Legal Metrology Act 2009

(b)

"Reference Standards Laboratory" means a laboratory set up by the Central Government under the Act, where Reference Standards, Secondary Standards and Working Standards are maintained:

(c)

"Schedule" means a schedule appended to these rules:

(d)

Words and expressions used in these rules and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Reference Standards.

- The Reference Standards shall be kept at such place, in such manner and in such custody as prescribed under the Legal Metrology (National Standards) Rules, 2011.

4.

Secondary Standards.

(1)

Every secondary Standards shall be verified at any of the Reference Standards laboratories, in such manner and at such periodical intervals as may be prescribed under the rules and shall, if found on such verification to conform to the Standards established by or under the Act, be stamped by Reference Standard Laboratory or a certificate of verification will be issued by that Laboratory.

(2)

The Secondary Standards shall be kept at such place, and in such custody as the controller may direct.

5.

Working Standards.

(1)

Every Working Standard shall be verified either at any of the Reference Standards laboratories or at any of the Secondary Standards Laboratories maintained by the State Government, in such manner and at such periodical intervals as may be prescribed under the rules and shall, if found on such verification to conform to the Standards established by or under the Act, will be stamped or certificate of verification will be issued by that laboratory as the case may be.

(2)

The Working Standards shall be kept in the custody of legal metrology officer.

6.

Secondary Standard balances.

(1)

A set of Secondary standard balances shall be maintained at every place where Secondary Standards Weights are kept.

(2)

The number, types and specifications of such balances shall be such as may be prescribed under the Legal Metrology

(General) Rules, 2011.

(3)

Every Secondary Standard balance shall be verified at least once within a period of twelve months and shall be adjusted, if necessary, to make it correct within the limits of sensitivity and other metro-logical qualities prescribed under the Act, by the Reference Standards Laboratory or by the Controller or such other officer as may be authorized by the Controller in this behalf.

7.

Working Standard Balances.

(1)

A set of Working Standards balances shall be maintained at every place where Working Standard Weights are kept.

(2)

The number, types and specifications of such balances shall be such as may be prescribed under the Legal Metrology (General) Rules, 2011.

(3)

Every Working Standard balance shall be verified at least once within a period of twelve months and shall be adjusted, if necessary, to make it correct within the limits of sensitivity and other metro-logical qualities prescribed under the Legal Metrology (General) Rules, 2011, by the Reference Standard Laboratory or at any of the place where Secondary Standards are maintained by the State Government.

8.

Physical characteristics, configuration, constructional details of Weights and Measures.

- Every Weight or measure used or intended to be used in any transaction or for protection shall conform as regards physical characteristic, configuration, constructional details, materials, performance, tolerances and such other details, to the specifications prescribed under the Act or the Legal Metrology (General) Rules, 2011.

9.

Use of Bullion Weights, carat Weights etc.

(1)

No weight other than a Bullion weight as specified in General Rules, 2011 shall be used in any transaction or protection in bullion including precious metals, pearls, ornaments or other articles made of gold or silver.

(2)

No weight other than a carat weight shall be used in any transaction in precious stones.

(3)

Only beam scale of class A or class B category or a non automatic weighing instrument of high accuracy class (class II) or special accuracy class (class I) shall be used in any transaction or protection referred to in sub-rules (1) and (2).

10.

Use of weights only or measures only or number only in certain cases.

- Except in the cases of commodities specified in Schedule I, the declaration of quantity in every transaction, dealing or contract, or for protection shall be terms of the unit of-

(a)

weight, if the commodity is solid, semi- solid, viscous or a mixture of solid and liquid.

(b)

length, if the commodity is sold by linear measure;

(c)

area, if the commodity is sold by area measure;

(d)

volume, if the commodity is liquid or is sold by cubic measure; or

(e)

number, if the commodity is sold by number.

11.

Licencing of manufacturer, repairer and dealer of weights and Measures.

(1)

Every manufacturer or repairer of, or dealer in, weight or measure shall make an application for the issue of a licence to

the Controller legal metrology or such other officer as may be authorized by him in this behalf, in the appropriate form set out in Schedule II-A.

Provided that no licence to repair shall be required by a manufacturer to repair weight or measure manufactured by him and used in a state other than the state of manufacture of the same, but the manufacturer has to inform in advance the concerned legal metrology officer about the repairing.

Provided that a person who bona fide repairs any weight or measure owned or possessed by him shall not require a repairer licence.

(2)

Every manufacturer or repairer of, or dealer in weight or measure shall make an application for the renewal of a licence within thirty days before the expiry of validity of the licence to the Controller legal metrology or such other officer as may be authorized by him in this behalf, in the appropriate form set out in Schedule II - B.

(3)

Every licence issued to a manufacturer, repairer or dealer shall be in the appropriate form set out in Schedule III.

(4)

Every licence issued to a manufacturer, repairer, or dealer shall be valid for a minimum period of one calendar year and may be renewed for a period of one to five calendar years, by the Controller or such other officer as may be authorized by him in this behalf on payment of necessary fee as specified in the Schedule IV.

(5)

The fee payable for the alteration of licence or for the issue of a duplicate licence shall be as specified in Schedule IV.

Provided that an additional fee at full the rates specified in Schedule IV shall be payable by the applicant if he is permitted by the Controller to make an application for the renewal of a licence within a period of three months from the date of expiry of the licence.

(6)

The Controller or such other officer as may be authorized by him in this behalf shall maintain a register of licenced manufacturers, dealers and repairers in the form set out in Schedule V.

(7)

Every manufacturer/ repairer/ dealer licenced under the Act and these rules shall maintain such workshop/ equipments/ tools/ registers etc. as the case may be, as per the terms and conditions of the licence.

(8)

Every repairer licenced under the Act and these rules shall furnish a security deposit for each licence to the State Government as specified in Schedule VI.

(9)

Every licence issued or renewed under this Act shall be displayed in a conspicuous place in the premises where the licensee carries on business.

(10)

A licence issued or renewed under this Act shall neither be salable nor transferable.

12.

Suspension and cancellation of licence granted.

(1)

The Controller or such other officer authorized by him on his behalf may, if he has any reasonable cause to believe that the holder of any licence issued, renewed or continued under this Act has made any statement in , or in relation to, any application for the issue, renewal or continuance of the licence, which is incorrect or false in any material particular or has contravened any provision of the Act or any rule or order made there under, suspend such licence, pending the completion of any inquiry against the holder of such licence:

Provided that no such licence shall be suspended unless the holder thereof has been given a reasonable opportunity of showing cause against the proposed action:

Provided further that where the inquiry referred to in this sub-rule is not completed within a period of three months from the date of suspension of a licence, such suspension shall, on the expiry of the period aforesaid, stand vacated.

(2)

The Controller or such other officer authorized by him on behalf may, if he is satisfied, after making such inquiry as he may think fit, that the holder of a licence has made a false or incorrect statement of the nature referred to in sub-rule (1),

or has contravened any law or order referred to in that sub-rule, cancel such licence

Provided that no such licence shall be cancelled unless the holder thereof has been given a reasonable opportunity of showing cause against the proposed action.

(3)

Every person whose licence has been suspended shall, immediately after such suspension, stop functioning as such licence and shall not resume business as such licensee until the order of such suspension has been, or stands, vacated.

(4)

Every licensee whose licence has been suspended or cancelled shall, after such suspension or cancellation, as the case may be, surrender such licence to the authority by which such licence was issued.

(5)

Every licensee whose licence has been cancelled shall, within a period of thirty days from the date of such cancellation, or within such further period, not exceeding three months from such date, as the Controller or such other officer authorized by him on behalf may, on sufficient cause being shown, allow, dispose of the weights or measures which were in his possession, custody or control on the date of such cancellation and in the event of his failure to do so, the Controller or any other officer authorized by him, in writing, in this behalf, may seize and dispose of the same and distribute the proceeds thereof in such manner as may be prescribed.

13.

Records to be maintained by manufacturers, etc.

- Every manufacturer or repairer of, or dealer in weight or measure licenced under the Act and these rules shall maintain records and registers in the appropriate form set out in Schedule VII and also submit such periodical report/ returns as may be specified.

14.

Periodical interval for the verification of weights and measures.

- Periodical interval for the verification of weights and measures shall be as has been specified in the Legal Metrology (General) Rules, 2011.viz :

(1)

Every weight or measure used or intended to be used in any transaction or for protection of living beings or things in clause (k) of section 2 shall be verified and stamped by the legal metrology officer in the State in which such weight or measure is put to use and shall be re-verified and stamped at periodical intervals.

(2)

The re-verification shall be carried out on the completion of a period of -

(a)

twenty four months for all weights, capacity measures, length measures, tape, beam scale and counter machine.

(b)

sixty months for storage tanks, and

(c)

twelve months for all weight or measure including tank lorry other than that mentioned in clauses (a) & (b).

(3)

Notwithstanding anything contained in sub-rule (2) every weight or measure which has been verified and stamped in situ shall, if it is dismantled and re-installed before the date on which the verification falls due shall be duly re-verified and stamped, before being put into use.

(4)

Notwithstanding anything contained in sub-rule (1) every weight or measure which has been verified and stamped shall , if it is repaired before the date on which the verification falls due shall be duly re-verified and stamped before being put into use.

15.

Verification and inspection of weights or measures.

(1)

Every person using any weight or measure in any transaction or for protection shall present such weight or measure for verification/ re-verification, at the office of the Legal Metrology Officer or at such other place as the Legal Metrology Officer may specify in this behalf on or before the date on which the verification falls due:

Provided that where any weight or measure is such that it cannot, or should not be moved from its location, the person using such weight or measure shall report to the Legal Metrology Officer at least thirty days in advance of the date on which the verification falls due.

(2)

Where any weight or measure is such that it cannot, or should not, be moved from its location, Legal Metrology Officer shall take necessary steps for the verification of such weight or measure at the place of its location.

(3)

For the verification of weight or measure referred to in sub-rule (2) the user shall provide such facilities as may be specified by the Controller.

(4)

Every weight or measure presented for verification shall be complete in itself.

(5)

Every weight or measure shall be verified in a clean condition, and if necessary, the Legal Metrology Officer shall require the owner or user to make necessary arrangement for the purpose.

(6)

A Legal Metrology Officer may visit, as frequently as possible during the period specified in the Legal Metrology (General) Rules, 2011 every premise within the local limits of his jurisdiction to inspect and test any weight or measure which is being or is intended or likely to be used in any transaction or for protection.

(7)

The Legal Metrology Officer shall obliterate the stamp on any weight or measure, if it is found during inspection that :-

(a)

Any weight or measure which being due for re-verification has not been submitted for such re-verification.

(b)

Any weight or measure which does not conform to the Standards established by or under the Act.

Provided that where the Legal Metrology Officer is of opinion that the defect or error in such weight or measure is not such as to require immediate obliteration of the stamp, he shall inform the user, of the defect or error found in the weight or measure and call upon user to remove the defect or error within such time, not exceeding eight days and shall-

(i)

if user fails to remove the defect or error within that period, obliterate the stamp, or

(ii)

if the defect or error is so removed as to make the weight or measure conform to the standards established by or under the Act, verify and stamp such weight or measure.

Explanation. - The obliteration of the stamp on any weight or measure shall not take away or abridge the power of the Legal Metrology Officer to seize such weight or measure in accordance with the Provisions of the Act.

16.

Stamping of weights or measures.

(1)

The Legal Metrology Officer shall stamp every weight or measure, if after testing and verification, he is satisfied that such weight or measure conforms to the standards established by or under the Act, with a stamp of uniform design, issued by the Controller, which shall indicate the number allotted for administrative purpose to the Legal Metrology Officer by whom it is stamped.

Provided that if by reason of the size or nature of any weight or measure it is not desirable or practicable to put a stamp thereon, the Legal Metrology Officer shall take such action as may be directed by the controller by a general or a special order in writing.

(2)

The Legal Metrology Officer shall also mark the year and its quarter of stamping on every verified weight or measure except when the size or nature of such weight or measure makes it impracticable.

Explanation. - A year shall be deemed to consist of four quarters of which first quarter shall be of the months of January, February and March which shall be marked as A; second quarter shall be of the months of April, May and June which shall be marked as B, third quarter shall be of the months of July, August and September which shall be marked as C and fourth quarter shall be of the months of October, November and December which be marked as D.

(3)

On completion of verification and stamping the Legal Metrology Officer shall issue a certificate of verification in the form set out in Schedule VIII.

(4)

Where a certificate of verification is lost or destroyed, the holder of the certificate of verification shall forthwith apply to the Legal Metrology Officer who had issued the certificate, for the issue of a duplicate certificate of verification. Every such application for the issue of a duplicate certificate shall be accompanied by a fee of rupees ten.

(5)

On receipt of an application under sub-rule (4), the Legal Metrology Officer shall issue to the applicant a duplicate copy of the certificate of verification marked 'DUPLICATE'.

17.

Fee for verification.

(1)

Fees payable for verification and stamping of weight or measure at the office or camp office of the Legal Metrology Officer shall be as specified in Schedule IX.

(2)

If, at the request of the user of weight or measure, verification is done at any premises other than the office or camp office of the Legal Metrology Officer, an additional fee shall be charged at half the rate specified in the Schedule IX and the user of the weight or measure shall pay the expenses incurred by the Legal Metrology Officer for visiting the premises including the cost of transporting and handling the Working Standard and other equipment subject to a minimum of rupees One hundred.

Provided that no additional fee shall be charged for verification and stamping of weights and measures in situ of;

(i)

vehicle tanks for petroleum products and other liquids, Meter for Liquids Other than Water (Fuel Dispenser, Liquid Petroleum Gas, Milk Dispensers), Compressed Natural Gas Dispensers, Non-automatic weighing Instruments like weighbridges, platform machines, crane scale, Automatic Gravimetric Filling Instruments, Automatic Rail-weigh bridge, Discontinuous Totalizing Automatic Weighing Instruments and such other weight or measure which cannot and should not be moved from its location;

(ii)

Weight or measure in the premises of manufacturer or dealer of such weight or measure.

(3)

If a weight or measure is presented to the Legal Metrology Officer for re-verification after expiry of the validity of the stamp, and additional fee at half the rates specified in Schedule IX shall be payable for every quarter of the year or part thereof.

(4)

Full fee shall be payable for re-stamping any weight or measure held in stock with manufacturer or dealer within the period specified in rule 14, from the date on which it was last stamped, provided that the original stamp was not obliterated.

(5)

A weight or measure which on verification/ inspection is found to be incorrect shall be returned to the person concerned for adjustment informing him, in a Performa specified by the Controller, of the defects found in the weight or measure, and calling upon him to remove the defects within a period not exceeding seven days. When the necessary adjustment has been carried out, such weight or measure shall be verified on payment of the fees specified in Schedule IX and if found correct shall be stamped.

18.

Collection of fees and deposit into the Treasury.

(1)

Before commencing the work of verification or re-verification, the Legal Metrology Officer shall inform the person concerned of the fees payable by him and shall receive the same in the manner as authorized by the Controller and issue a receipt on the form approved by the Controller, one copy of such receipt being kept on record.

Provided that fees payable by a department of the Central or State Government under these rules may be realized in

such manner as may be directed by the Controller.

(2)

The Legal Metrology Officer shall maintain a register, in the form approved by the Controller, which shall be written up from day-to-day and shall show the amount of fees and other charges collected during the day.

(3)

All payment received by the Legal Metrology Officer during the week shall be paid into the Government Treasury under the appropriate "Head of Account" on such dates or days as may be specified by the Controller from time to time, and receipt thereof be obtained and an intimation to that effect be sent to the Controller or other officer authorized by him in this behalf.

19.

Disposal of seized weights, measure, etc.

(1)

Any un-verified weight or measure shall be returned to the person from whom such weight or measure was seized if that person gets the same verified and stamped, within fifteen days of the return, on payment of the prescribed fee including the additional fee payable for undertaking re-verification after the expiry of the validity of the stamp.

(2)

Any weight or measure or document or thing or goods seized and detained under sections 15 of the Act, which is to be the subject of proceedings in a court shall be produced by the Legal Metrology Officer before the court and shall after conclusion of the proceedings, be taken possession of by the Legal Metrology Officer and dealt with in accordance with the orders of the court:

Provided that in the absence of the orders of the court, weight or measure or document or thing or goods shall be dealt with as the Controller may by special order direct and the material thereof shall be sold and the proceeds credited to the Government.

(3)

If any goods, seized under 15 of the Act, are subject to speedy or natural decay, the Legal Metrology Officer shall have the goods weighed or measured on a verified weighing or measuring instrument available with him or nearest the place of offence and enter the actual weight or measure of the goods in a form specified by the controller for this purposes, and shall obtain the signature of the trader or his agent or such other person who has committed the offence. The goods in question shall be thereafter returned to the trader or the purchaser as the case may be:

Provided that if the trader or his agent or the other person (who has committed the offence) refuses to sign the form, the Legal Metrology Officer shall obtain the signature of not less than two persons present at the time of such refusal by the trader or his agent or other person. In the case of goods returned to the trader, he shall give an undertaking that he shall not sell the defective goods without rectifying the defects thereon.

(4)

Where the goods seized under sub-section (1) of section 15 of the Act are contained in a package and the package is false or does not conform to the provisions of the Act or any rules made there under and the goods in such package are subject to speedy or natural decay, the Legal Metrology Officer so far as may be, may dispose of the goods in such package in accordance with the provisions of sub-rule (3).

Provided that the Controller shall be the final authority to decide whether the goods seized and detained are subject to speedy or natural decay.

(5)

Where the goods seized under sub-section (1) of Section 15 of the Act are not subject to speedy or natural decay, the Legal Metrology Officer may retain the package for the purpose of prosecution under this Act after giving the trader or his agent or the other person (who has committed the offence) a notice of such seizure.

(6)

The goods referred under sub-rule (4) & (5) which are not to be the subject of proceedings in court, shall after the expiry of sixty days of its seizure, be so dealt with as the Controller may by special order direct.

20.

Validity of Weights or Measures duly stamped.

(1)

A weight or measure which is, or is deemed to be, duly verified and stamped under this Rule shall be deemed to

conform to the standards established by or under the Act at every place within the State of Bihar unless it is found on inspection or verification that such weight or measure has ceased to conform to the standards established by or under the Act.

(2)

No weight or measure which is , or is deemed to be, duly verified and stamped under this Act shall require to be re-stamped merely by reason of the fact that it is being used at any place within the State other than the place at which it was originally verified and stamped.

Provided that where a verified weight or measure, installed at one place is dismantled and re-installed at a different place, such weight or measure shall not be put into use unless it has been duly re-verified and stamped, notwithstanding that periodical re-verification of such weight or measure has not become due.

(3)

Where a verified weight or measure has been repaired, whether by a licenced repairer or by the person owning and possessing the same, such weight or measure shall not be put into use unless it has been duly re-verified and stamped, notwithstanding that periodical re-verification of such weight or measure has not become due.

21.

Qualifications of Legal Metrology Officer.

- As has been specified in the Legal Metrology (General) Rules, 2011.

22.

Provision of supply of working/Secondary Standards, equipment, etc. to the Legal Metrology Officer.

(1)

Every Legal Metrology Officer shall be provided with Working /Secondary Standard weights, Working/ Secondary Standard balances, and such other equipment includes weighing and measuring devices as may be approved by the Controller from time to time.

(2)

Every Legal Metrology Officer shall be provided with such dies, punches, paper seal/ sticker and such other equipment as may be necessary for affixing the verification stamp, the design and number of which are to be approved by the Controller.

(3)

Every Legal Metrology Officer shall be provided with punches of suitable sizes of eight pointed star as shown below for obliterating stamps.

23.

Provisions relating to use of weights measure, etc.

(1)

Every person using a beam scale in any transactions in his premises shall suspend the same to a stand or to a chain by a hook:

Provided that this sub-rule shall not apply to itinerant vendors.

(2)

Every weight or measure shall be used in a clean condition and in proper lighting arrangement.

(3)

Any weight or measure, which has been verified and stamped in situ, shall not be dismantled and removed from its original site without prior intimation to the Controller or other person authorized by him in this behalf.

(4)

To ensure a proper check of the accuracy of a weighing instrument the user shall keep at the site of each weighing instrument duly verified and stamped weights equal to one-tenth of the capacity of the instrument or one tonne and consumer can also check the accuracy of the weighing instrument.

Provided that the Controller may specify the total number of verified and stamped weights to be maintained in trade premises where the number of weighing instruments are more than one.

(5)

To ensure proper delivery of the petrol/ diesel pumps, the retail dealer of the pump shall keep a verified 5 liter/ 10 liter capacity measure in his premises and check the out put from the pump every day to ensure its correct delivery. In case of any short delivery the dealer shall stop the delivery through the pump immediately and inform the legal metrology

officer concerned to recalibrate the pump.

24.

Certificate of verification to be exhibited.

- The person to whom a certificate of verification is issued shall exhibit the same in a conspicuous place in the premises where the weights, measures or weighing or measuring instruments to which the certificate relates are used:

Provided that in the case of itinerant vendor, the certificate shall be kept with the person:

Provided further that in the case of vehicle tank, the certificate of verification shall be kept with the vehicle.

25.

Penalty for contravention of rules.

- Whoever contravenes any provision of these rules, for the contravention of which no punishment has been separately provided in the Act, shall be punished with fine, which may extend to five thousand rupees. Whenever rules are in conflict with the provisions of the Act, the Act will prevail the rules.

26.

Form of appeal.

(1)

Every appeal under the Act and these rules shall be preferred in the form set out in schedule X, and shall be accompanied by a copy of the order appealed against.

(2)

An application for appeal to State Government shall be accompanied by fee of Rs. 500 and for appeal to Controller shall be accompanied by fee of Rs 200 paid either by cash or by affixing court fee stamp for the said value as the case may be.

27.

Fee for compounding of offences.

- The fee for compounding of offences committed under the Act shall be as prescribed in Schedule XI.

28.

Repeal & Savings.

(1)

The Bihar Standard of Weights and Measures (Enforcement) Rules, 1988 are hereby repealed.

(2)

Without prejudice to the provisions contained with respect to repeal any notification, rule or order made under the Bihar Standard of Weights & Measures (Enforcement) rule, 1988, shall , if in force, at the commencement of this rules, continue to be in force and have effect as if it were made, issued or given under the corresponding provision of this Bihar Legal Metrology (Enforcement) Rule, 2014.

I

(See Rule 10)

Exceptions referred to in Rule 10

1. The following commodities may be sold by weight, measure or number as show against the commodity.

Table

Sr. No.

Commodity

Whether declaration to be expressed in terms

of weight, measure or number or two or more to them.

(1)

(2)

(3)

1.

Aerosol products

weight

2.

Acids in liquid form

weight or Volume

3.
Compressed or liquefied gas (but not liquefied
petroleum gas
weight and equivalent volume at stated
temperature and pressure

4.
Butter (incl. peanut butter), cheese, curd,
ghee
Weight

5.
Electric cables
length or weight

6.
Electric wire
length or weight

7.
Fencing wire
length or weight

8.
Hair oil, un perfumed
weight or volume

9.
Fruits and vegetable
number or weight

10.
Furnace oil
weight or volume

11.
Linseed oil and other vegetable oils
weight or volume.

12.
Heavy residual fuel oil
weight

13.
Industrial diesel fuel oil
volume

14.
Honey, malt extract, golden syrup treacle.
weight

15.
Ice cream and other similar frozen products
weight or volume

16.
Liquid chemicals
weight or volume.

17.
Liquid petroleum gas
weight

18.
Nails, wood screws
number or weight

19.

Paint(other than paste paints or solid paint),
varnish and varnish stains, enamels.

volume

20.

Papad

number and weight

21.

Paste paint, solid paint

weight

22.

Ressogulla, Gulabjamun and other sweet
preparations

weight

23.

Ready made garments

number

24.

Sauce, all kinds

weight

25.

Tyres and tubes

number

26.

Yarn

Weight or length of yarn.

II "A"

[See rule 11 (I)]

Form-LM-I

[Application form for licence as manufacturer of weights & measures under the Legal Metrology Act, 2009]

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name of the manufacturing concern for which
licence is desired

?.....

2.

Complete address of the concern. Whether
premises are owned/ rented / taken on lease/ leave licence, duly
supported by documents

?.....

3.

Date of Establishment of workshop/ factory

?.....

4.

Name (s) and address (s) along with their
father's/ husband's name of proprietor (s) and/ or Partners and

Managing Director (s) in the case of Limited company

?.....

5.

The date and current registration number of
factory/ shop/ establishment/ Municipal Trade licence

?.....

6.

Nature of manufacturing activities at present.

?.....

7.

The type of weights and measures proposed to be
manufactured viz

?.....

(i) Weights

(ii) Measures

(iii) Weighing Instruments

(iv) Measuring Instruments with details in each
case.

8.

The number of persons employed/ proposed to be
employed

?.....

(i) Skilled

(ii) Semi-skilled

(iii) Unskilled

(iv) Specialist trained in the line.

9.

The monogram or trade mark intended to be
imprinted on weights and measures to be manufactured

?.....

10.

Details of machinery, tools accessories, owned
and used for manufacturing weights measures etc

?.....

11.

Details of foundry/workshop facilities arranged
Whether ownership, long term lease etc

?.....

12.

Facilities of steel casting and hardness testing
of Vital parts etc. or other means

?.....

13.

Availability of electric energy

?.....

14.

Details of loan received from Government or
financial Institution. If so, give details

?.....

15.

Name of bankers, if any

?.....

16.

VAT/Sales Tax Registration Number/CST Number/

Professional Tax registration Number/IT Number

?.....

17.

Have you applied previously for a manufacturer's

licence? If so, when and with what results?

?.....

18.

(a) Whether the item (s) proposed to be

manufactured will be sold within the State or out side the state

or both

?.....

(b) Details of Model Approval received from

Government of India.

(c) When can you produce for inspection samples

of your products for which licence is desired?

To be certified by the applicant (s)

Certified that I/ We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rule, 2014 and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.

I/ We agree to deposit the Scheduled licence fees with Government as soon as required to do so by the Licencing Authority.

All the information furnished above is true to the best of my/our knowledge.

Place:

.....

Date :

Signature and Designation.

To be filled in by Departmental Officer of the State Government.

Date of Receipt Application:

Serial Number of application:

Date of Inspection:

Recommendation of Inspecting Officer:

Place:

.....

Date :

Signature and Designation of Inspecting Officer.

Final orders of Licencing Authority.

licence granted/ refused:

licence Number :

Valid till :

Place:

.....

Date :

Signature and Designation.

II A

[See Rule 11 (I)]

Form- LR-I

[Application for licence as repairers of weights & measures under the Legal Metrology Act, 2009]

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name of the concern seeking the licence

?.....

2.

Complete address of the workshop

?.....

3.

(a) Whether premises are owned/ rented/taken on
lease dully supported by documents

?.....

(b) Date of establishment.

?.....

4.

Name (s) and address (s) along with their
father's/ husband's name of proprietor (s) and/ or Partners and
Managing Director (s) in the case of Limited company

?.....

5.

Number and date of shop/establishment/ current
Municipal Trade licence..

?.....

6.

Professional Tax IT Tax registration Number etc
if any

?.....

7.

The type of weights and measures proposed to be
repaired

?.....

8.

Area in which you wish to operate.

?.....

9.

Previous experience in the line

?.....

10.

Number of skilled staff employed or proposed to
be employed.

?.....

(i) Skilled

?.....

(ii) Semi-skilled

?.....

(iii) Unskilled

?.....

(iv) Employees trained in the line.

?.....

11.

Details of machinery/tools/accessories
available.

?.....

12.

Availability of electric energy

?.....

13.

Have you sufficient stock of loan/test weights
etc. ? Give details.

?.....

14.

Have you applied previously for a repairer's
licence?If so, When and with what results ?

?.....

To be certified by the applicant (s)

Certified that I/ We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rule, 2014
and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.

I/ We agree to deposit the Scheduled licence fees with Government as soon as required to do so by the Licencing
Authority.

All the information furnished above is true to the best of my/our knowledge.

Place:

Date :

.....

Signature and Designation.

To be filled in by Departmental Officer of the State Government.

Date of Receipt Application:

Serial Number of application:

Date of Inspection:

Recommendation of Inspecting Officer:

Place:

Date :

.....

Signature and Designation of Inspecting Officer.

Final orders of Licencing Authority.

licence granted/ refused:

licence Number :

Valid till :

Place:

Date:

.....

Signature and Designation.

II A

[See rule 11 (I)]

Form- LD - I

[Application form for licence as Dealers in weights & measures under the Legal Metrology Act, 2009]

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name of the establishment/shop/person seeking
the licence

.....

2.

Complete address of the establishment etc.

.....

3.

Date of Establishment

.....

4.

Name (s) and address (s) of proprietor (s) and/
or Partners and Managing Director (s) in the case of Limited
company

.....

5.

Number and date of Registration Number of
current shop/ establishment/ Municipal Trade licence

.....

6.

Categories of weights and measures sold/proposed
to be sold at present

.....

7.

Registration Number of VAT/CST/Sales
Tax/Professional Tax/Income Tax

.....

8.

Do you intend to import weights, etc. from
places outside the State/Country ? If so indicate sources of
supply. (Give details of manufacturer's trade mark/ monogram and
his licence number) and provide

.....

(a) Registration of Importer to Weights and
Measures, if any

.....

(b) Approval of model imported into India by
Central Government

.....

9.

Have you applied previously for a dealer's
licence, either in this State or elsewhere ? If so give details?

.....

To be certified by the applicant (s)

Certified that I/ We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rule, 2014
and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.
I/ We agree to deposit the Scheduled licence fees with Government as soon as required to do so by the Licencing
Authority.

All the information furnished above is true to the best of my/our knowledge.

Place:

.....

Date :

Signature and Designation.

To be filled in by Departmental Officer of the State Government.

Date of Receipt Application:

Serial Number of application:

Date of Inspection:

Recommendation of Inspecting Officer:

Place:

.....

Date :

Signature and Designation of Inspecting Officer.

Final orders of Licencing Authority.

licence granted/ refused:

licence Number :

Valid till :

Place:

.....

Date :

Signature and Designation.

II B

[See rule 11(2)]

Form LM-2

[Application for renewal Licence as Manufacturer of Weights & Measures under the Legal Metrology Act, 2009.

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name and complete address of the manufacturing concern for which renewal of licence is desired

?.....

2.

Manufacturing Licence No.

?.....

3.

Name (s) and address (s) along with their father's/husband's name of proprietor(s) and/or Partners and Managing Director(s) in the case of Limited company

?.....

4.

(a) Type of weights and measures which are manufactured as per licence granted

?.....

(b) Do you propose any change

?.....

5.

The monogram or trademarks used on weights and

measures manufactured by you

?.....

6.

Details of workshop facilities available

?.....

7.

Details of production and sales in the last 5 years

?.....

8.

Number and date of shop/establishment

Registration Number

?.....

9.

Registration Number of VAT/Sales

Tax/CST/Professional Tax/ Income Tax

?.....

To be certified by the applicant (s)

Certified that I/We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rules, 2014 and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.

I/ We have deposited the Scheduled licence fees of Rs..... (Rupees)

to the sub-Treasury/Bank on..... and the original challan is enclosed.

All the information furnished above is true to the best of my /our knowledge.

Place:

.....

Date :

Signature and Designation.

II B

[See rule 11(2)]

Form LR-2

[Application for renewal Licence as Repairer of Weights & Measures under the Legal Metrology Act, 2009].

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name and complete address of the repairing concern/person seeking renewal of licence

?.....

2.

Repairer's Licence Number.

?.....

3.

Name (s) and address (s) along with their father's/husband's name of proprietor(s) and/or Partners and Managing Director(s) in the case of Limited company.

?.....

4.

Registration Number and date of current
shop/establishment/Municipal Trade Licence

?.....

5.

Registration Number of VAT/Sales
Tax/CST/Professional Tax/Income Tax

?.....

6.

(a) The type of weights and measures repaired as
per licence granted.

?.....

(b) Do you propose any change.

?.....

7.

Area in which you are operating.

?.....

8.

Have you sufficient stock of loan/ test weights,
etc.?

?.....

9.

Please give details with particulars of
stamping.

?.....

To be certified by the applicant (s)

Certified that I/We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rules, 2014
and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.

I/ We have deposited the Scheduled licence fees of Rs..... (Rupees
.....) to the sub-Treasury/Bank on.....
..... and the original challan is enclosed.

All the information furnished above is true to the best of my /our knowledge.

Place:

.....

Date :

Signature and Designation.

II B

[See rule 11(2)]

Form LD-2

[Application for renewal Licence as Dealer of Weights & Measures under the Legal Metrology Act, 2009].

To,

To be filled by the Applicant

Comments of the inspection officer

1

2

3

1.

Name of the establishment/ shop/ person seeking
the renewal of licence

?.....

2.

Dealer's Licence Number

?.....

3.

Date of establishment

?.....

4.

Name (s) and address (s) along with their
father's/husband's name of proprietor(s) and/or Partners and
Managing Director(s) in the case of Limited company

?.....

5.

Registration Number and date of
shop/establishment current Municipal Trade Licence

?.....

6.

Categories of weights and measures sold at
present

?.....

7.

Registration Number of VAT/ CST/Sales Tax
/Professional Tax/Income Tax

?.....

8.

Are you intending to import weights and measures
etc. from places outside the State / Country? If so, indicate
sources of supply from the State (s)/Country (s) (Give details of
manufacturer's trade mark/monogram and his licence number.)

?.....

To be certified by the applicant (s)

Certified that I/We have read the Legal Metrology Act, 2009 and the Bihar Legal Metrology (Enforcement) Rules, 2014
and agree to abide by the same and also the administrative orders and instructions issued or to be issued there under.

I/ We have deposited the Scheduled licence fees of Rs..... (Rupees
.....) to the sub-Treasury/Bank on.....
..... and the original challan is enclosed.

All the information furnished above is true to the best of my /our knowledge.

Place:

.....

Date :

Signature and Designation.

III

[See rule 11(3)]

Licencing Forms.

Form LM-3

Government of Bihar Office of The Controller of legal Metrology.

Licence to manufacture, weights, measures, weighing or measuring instruments.

Licence No.....

Year.....

1. The Controller of Legal metrology hereby grants to..... (Name and address of
party or parties) a licence to manufacture the following :-

(Include details of the weights, measures, weighing instruments or measuring instruments that are licence to be
manufactured by the party.).

2. The licence is valid for the party named above in respect of his workshop located at.....

3. This licence is valid from..... to.....

4. The manufacturer shall comply with the conditions noted below. If he fails to comply with anyone of these, his licence is liable to be cancelled.

5. The trade mark monogram being used by the manufacturer is as under.

.....

(Signature)

Controller of Legal Metrology Govt. of Bihar.

(Seal)

Date.....

Place.....

Note. - In the case of firm, its name with the names of all names of all persons having any interest in the business should be given in paragraph 1.

Conditions of Licence.

1. The person in whose favour this licence is issued shall.-

(a)

Comply with all the relevant provisions of the Act and Rules for the time being in force;

(b)

Note encourage or countenance any infringement of the provisions of the Act. or the Rules amended from time to time;

(c)

Exhibit this licence in some conspicuous part of the premises to which it relates;

(d)

Comply with any general or special directions that may be given by the Controller of legal metrology ;

(e)

Surrender the licence in the event of closure of business and / or cancellation of Licence ;

(f)

Present the weights, measures, weighing or measuring instruments as the case any be manufactured and meant for use within the State, to the legal metrology officer for verification and stamping before sale ;

(g)

Submit the application for renewal of this licence as required under the rules within thirty days of expiry of the validity of the licence.

2. Every condition prescribed after the issue of this licence shall , if notified in the Official Gazette, be binding on the persons to whom the licence has been granted.

Renewal Entries.

Current No..... Date

Current No..... Date

Renewed for

Renewed for

{|

Seal

| {|

|-

| Seal

|}

|-

| Controller of Legal

Metrology

| Controller of Legal

Metrology

|-

| Current

No..... Date

| Current

No..... Date

|-

| Renewed for

| Renewed for

|-

| {

|-

| Seal

|}

| {

|-

| Seal

|}

|-

| Controller of Legal

Metrology

| Controller of Legal

Metrology

|-

| Current No..... Date

| Current No..... Date

|-

| Renewed for

| Renewed for

|-

| {

|-

| Seal

|}

| {

|-

| Seal

|}

|-

| Controller of Legal

Metrology

| Controller of Legal

Metrology

|}

III

[See rule 11(3)]

Licensing Forms.

Form LR-3

Government of Bihar Office of The Controller of Legal Metrology.

Licence To Repair Weights, Measures, Weighing Instruments Or Measuring Instruments.

Licence No.....

Year.....

1. The Controller of Legal metrology hereby grants to.....

(Name and address of party or parties) a licence to repair the following :-

(Include details of the type of weights, measures, weighing instruments or measuring instruments that are licence to be

repaired by the party.).

2. The licence is valid for the party named above in respect of his workshop located at.....

3. This licence is valid from..... to.....

4. The repairer shall comply with the conditions noted below. If he fails to comply with any one, his licence is liable to be cancelled.

5. The party is licenced to repair weights, measures, weighing and measuring instruments in the areas mentioned below-

.....

(Signature)

Controller of Legal Metrology

Govt. of Bihar.

(Seal)

Date.....

Place.....

Note. - In the case of firm, its name with the names of all names of all persons having any interest in the business should be given in paragraph (1).

Conditions of Licence.

1. The person in whose favour this licence is issued shall.-

(a)

Comply with all the relevant provisions of the Act and Rules for the time being in force;

(b)

Not encourage or countenance any infringement of the provisions of the Act or the Rules for the time being in force.

(c)

Exhibit this licence in some conspicuous part of the premises to which it relates;

(d)

Comply with any general or special directions that may be given by the Controller of legal metrology ;

(e)

Surrender the licence in the event of closure of business and / or cancellation of Licence ;

(f)

(i)

Present the weights, measures, weighing or measuring instruments as the case may be duly repaired to the legal metrology officer for under taking verification and stamping as specified in rule 14 before delivery to the user.

(iii)

In the case of weights, measures weighing or measuring instruments, if they are serviced/ repaired before the date of which the verification falls due and where, in the process and the verification stamp of the legal metrology officer is defaced, removed or broken , they shall be presented duly repaired to the legal metrology officer for re-verification and stamping before delivery to the user.

(g)

Submit the application for renewal of this licence as required under the rules within thirty days of expiry of the validity of the licence.

2. Every condition prescribed after the issue of this licence shall, if notified in the Official Gazette, be binding on the persons to whom the licence has been granted".

Current No..... Date

Current No..... Date

Renewed for

Renewed for

{|

Seal

| {|

|-

| Seal

}
|-
| Controller of Legal
Metrology
| Controller of Legal
Metrology
|-
| Current
No..... Date
| Current
No..... Date

|-
| Renewed for
| Renewed for

|-
{
Seal

}
{
Seal

}
|-
| Controller of Legal
Metrology
| Controller of Legal
Metrology

}
III
[See rule 11(3)]
Licencing Forms.
Form LD-3

Government of Bihar Office of the Controller of legal metrology.
Licence to dealer in weights, measures, weighing instruments or measuring instruments
Licence No.....

Year.....

1. The Controller of Legal metrology hereby grants to.....
(Name and address of party or parties) a licence to deal in the following (Indicate details of the type weights and measures, weights, or measuring instruments that are licenced to be dealt with by party.).
2. The licence is valid for the party named above in respect of his premises located at.....
3. This licence is valid from..... to.....
4. The dealer shall comply with the conditions noted below. If he fails to comply with any one of those his licence is liable to be cancelled.

.....
(Signature)
Controller of Legal MetrologyGovt. of Bihar.
(Seal)
Date.....
Place.....

Note. - In the case of firm, its name with the names of all persons having any interest in the business should be given in

paragraph (1).

Conditions of Licence.

1. The person in whose favour this licence is issued shall.-

(a)

Comply with all the relevant provisions of the Act and Rules for the time being in force;

(b)

Note encourage or countenance any infringement of the provisions of the Act. or the Rules for the time being in force;

(c)

Exhibit this licence in some conspicuous part of the premises to which it relates;

(d)

Comply with any general or special directions that may be given by the Controller of legal metrology ;

(e)

Surrender the licence in the event of closure of business and / or cancellation of Licence ;

(f)

Submit the application for renewal of this licence as required under the rules within thirty days of expiry of the validity of the licence.

(g)

Not sell or offer , expose or possess for sale any non-standard weight or measure.

2. Every condition prescribed after the issue of this licence shall , if notified in the Official Gazette, be binding on the persons to whom the licence has been granted.

Renewal Entries.

Current No..... Date

Current No..... Date

Renewed for

Renewed for

{|

Seal

| {|

|-

| Seal

|}

|-

| Controller of Legal

Metrology

| Controller of Legal

Metrology

|-

| Current

No..... Date

| Current

No..... Date

|-

| Renewed for

| Renewed for

|-

| {|

|-

| Seal

|}

| {|

|-

| Seal
}
Controller of Legal
Metrology
Controller of Legal
Metrology
-
Current No..... Date
Current No..... Date
-
Renewed for
Renewed for
-
{
-
Seal
}
{
-
Seal
}
-
Controller of Legal
Metrology
Controller of Legal
Metrology
}
IV

[See rule- 11 (4) & (5)]

Government of Bihar Office of Controller of Legal Metrology.

Licencing and renewal fees for manufacturer, repairers of dealers of weights and Measures.

1.

Issue of licence/ renewal of licence to :

(i)

Manufacturers.

Rs. 500/- per year.

(ii)

Repairers.

Rs. 100/- per year

(iii)

Dealers.

Rs. 100/- per year

2.

Alteration of licence :

Rs. 50/-

3.

Issue of duplicate licence:

Rs. 10/-

V

[See rule- 11 (6)]

Government of Bihar Office of Controller of Legal Metrology.

Register of licenced Manufacturers/ Repairers/ Dealers of weights, Measures, weighing/ measuring instruments.

Office of.....

Licence Number

Date of issue/ renewal

Name and complete address of the manufacturer/

repairer/dealer

Place where workshop/ factory is situated

Articles to be manufactured/ repaired/sold

1

2

3

4

5

Trade mark/ monogram being used

Orders regarding cancellation of licence

Result of appeal

Signature of competent authority

Remark

6

7

8

9

10

Note. - Column (4) does not apply to dealers, column (6) does not apply to repairers and dealers.

VI

[See rule- 11 (8)]

Government of Bihar Office of Controller of Legal Metrology.

Security deposit to be made by licenced repairer.

Repairer of weights and measures including

weighing and measuring instruments.

Rs. 200.00

VII

[See rule 13]

Form LM-4

Register to be maintained by the manufacturers of Weights and Measures

1.

Name and address of the

manufacturer.....

2.

Description of the weight or measure

.....

3.

(i) No. of the manufacturing licence

.....

(ii) Date on which the licence was issued

.....

(iii) Period of validity of the licence

.....

4.

Particulars of order, if any , suspending or

revoking

The licence.

S. No.

Month

Unsold stock from previous month

Quantity manufactured during the month

Total 3+4

Sold within the state

No. of item sold

Despatch voucher no. and date

1

2

3

4

5

6

7

Sold outside the state

Despatch voucher no. and date

Total sold (6+9)

Balance (5-11)

Remarks

Name of the state

No. of items sold

8

9

10

11

12

13

VII

[See rule 13]

Form LR-4

Register to be maintained by the repairer in respect of Weights, Measures

Name and address of the

repairer.....

Licence No.....

Date of Licensing.....

S. No.

Date

Name of the user from whom received

Items and their Nos. booked for repair

Receipt No. and date of issue to the user

1

2

3

4

5

Amount of repairing charges

Amount of verification fee

Total amount charged

Date of return to the user

Remarks

6

7

8

9

10

VII

[See rule 13]

LD-4

Register to be maintained by dealer in weights and measures.

1.

Name and address of the

dealer.....

2.

Description of the weight or

measure.....

3.

(i) Dealer licence

No.....

(ii) Date on which the licence was

issued.....

(iv) Period of validity of

licence.....

4.

Particulars of order, if any suspending

or.....

Revoking the licence.

5.

Category of weight or

measure.....

(Category A or B)

Sr. No.

Month

Unsold stock from the previous month

Brought from within the State during the month

Brought from outside the State during the month

Total (3+4+5)

1

2

3

4

5

6

Sold within the state

Sold outside the state

Total sold (7+9)

Balance (6-12)

Remarks

No. of items sold

Despatch voucher no. and date

No. of items sold

Despatch voucher No. and date

Name of the State

7

8

9

10

11

12

13

14

VIII

[See rule- 16 (3)]

Government of Bihar Office of Controller of Legal Metrology.

Certificate of verification.

Name of Legal Metrology

Officer.....

No.....

I hereby certify that I have this day verified

and stamped/ rejected the under mentioned weights, measures, etc.

Belonging

to.....Locality.....

Quantity

Denomination

Weighing instruments

Weights

Measures

Capacity

Class

Manufacturer

Type

1

2

3

4

5

6

7

Measuring instruments

Verification Fee

Carriage, conveyance adjusting charges etc.

Rs.

P.

8

9

10

Total

Rs.....deposited vide T. Receipt/

Money receipt No..... Repaired by/ Used

by.

?.....

(Signature)

Next Verification due on

?.....

Legal Metrology Officer.

Note. - In the case of rejected weights, measures, etc the legal metrology officer shall give separate Certificate or rejection mentioning the reasons of rejection against each item.

IX

[See Rule- 14 (1)]

Fee payable for verification and Stamping of Weights and Measures and Weighing and Measuring Instruments

1. (a) Bullion Weights:

Denomination

(1)

Fee per piece (Rs.)

(2)

10 Kg.

30.00

5 Kg.

20.00

2 Kg.

20.00

1 Kg.

20.00

500 g.

15.00

200 g.

15.00

100 g.

15.00

50 g.

15.00

20 g.

15.00

10 g.

15.00

5 g.

15.00

2 g.

15.00

1 g.

15.00

(b)

Carat Weights :

Denomination

(1)

Fee per piece (Rs.)

(2)

100g (500 c)

20.00

40g (200 c)

20.00

20g (100 c)

20.00
 10g (50 c)
 20.00
 4g (20 c)
 20.00
 2g (10 c)
 20.00
 1g(5 c)
 20.00
 400mg (2c)
 20.00
 200mg (1c)
 20.00
 100mg (0.5 c)
 20.00
 40mg (0.02 c)
 20.00
 20mg (0.01 c)
 20.00
 10mg (0.05 c)
 20.00
 4mg (0.02c)
 20.00
 2mg (0.01 c)
 20.00
 1mg (0.005c)
 20.00
 (c)

Cylindrical knob type weights :

Denomination(1)

Fee per piece (Rs.)(2)

10 Kg.
 20.00
 5 Kg.
 20.00
 2 Kg.
 15.00
 1 Kg.
 10.00
 500 g.
 5.00
 200 g.
 5.00
 100 g.
 5.00
 50 g.
 5.00
 20 g
 5.00
 10 g.
 5.00

5 g.

5.00

2 g.

5.00

1 g

5.00

(d)

Sheet-metal weight (other than Bullion)

Denomination(1)

Fee per piece (Rs.)(2)

500 mg.

5.00

200 mg.

5.00

100 mg.

5.00

50 mg.

5.00

20 mg.

5.00

10 mg.

5.00

5 mg.

5.00

2 mg.

5.00

1 mg.

5.00

(e)

Iron hexagonal, knob type weights and parallelepiped weights :

Denomination(1)

Fee per piece (Rs.)(2)

50 Kg.

25.00

20 Kg.

20.00

10 Kg.

20.00

5 Kg.

20.00

2 Kg.

15.00

1 Kg.

10.00

500 g.

5.00

200 g.

5.00

100 g.

5.00

50 g.

5.00
20 g.
5.00
10 g.
5.00
5 g.
5.00
2 g.
5.00
1 g.
5.00

(f)

Standard weights for testing of high capacity weighing machines :

Denominations

Fee corresponding to Max permissible relative error 0.5/10000 in Rs.

Fee corresponding to Max permissible relative error 3.3/10000, 1.7/10000 and 1.0/10000 in Rs.

100 kg.
75.00
50.00
200 kg.
150.00
100.00
500 kg.
300.00
200.00
1000 kg.
750.00
500.00
2000 kg.
1500.00
1000.00
5000 kg.
3000.00
2000.00

2. Capacity Measures :

Denomination

(1)

Fee per piece (Rs.

(2)

100 litre and above

Rs. 50 for the 1st 100 litre plus Rs. 7 for every additional 100 litre or part thereof subject to maximum of Rs.

5000.
50 l
50.00
20 l
20.00
10 l
20.00

5 l
10.00
21
10.00
1 l
10.00
500 ml.
10.00
200 ml.
10.00
100 ml.
10.00
50 ml.
10.00
20 ml.
10.00
10 ml.
10.00
5 ml.
10.00
2 ml.
10.00
1 ml.
10.00

3. Length Measures :

Denomination

(1)

Fee per piece (Rs.)

(2)

2 m.

10.00

1 m.

10.00

0.5 m.

20.00

1 m. graduated (at every cm)

20.00

0.5 graduated (at every cm)

20.00

(b)

Fabric Plastic/Woven/Steel tapes -

Accuracy Class (1)

Fee per metre in Rs. (2)

Class-I

1.00

Class-II

1.00

Class-III

0.50

(c)

Folding Scales-

Denomination

(1)

Fee per piece (Rs.)

(2)

1 m.

10.00

0.5 m.

10.00

(d)

Surveying Chain-

Denomination

(1)

Fee per piece (Rs.)

(2)

30 m.

100.00

20 m.

100.00

4. Beam Scale Class A & B :

Denomination

(1)

Fee per piece (Rs.)

(2)

200 kg.

400.00

100 kg.

300.00

50 kg.

150.00

20 kg.

150.00

10 kg.

150.00

5 kg.

100.00

2 kg.

100.00

1 kg.

100.00

500 g. and below

60.00

5. Beam Scales Class C & D :

Denomination

(1)

Fee per piece (Rs.)

(2)

1000 kg.

200.00

500 kg.

200.00

300 kg.

200.00

200 kg.

100.00

100 kg.

100.00

50 kg.

20.00

20 kg.

20.00

10 kg.

20.00

5 kg.

15.00

2 kg.

15.00

1 kg.

15.00

500 g. and below

10.00

6. Non-Automatic Weighing Instruments - Mechanical (analogue) Class III & IV :

Denomination

(1)

Fee per piece (Rs.)

(2)

400 t.

4000.00

300 t.

3000.00

200 t.

3000.00

150 t.

2000.00

100 t.

2000.00

80 t.

2000.00

60 t.

2000.00

50 t.

2000.00

40 t.

2000.00

30 t.

2000.00

25 t.

2000.00

20 t.

2000.00

15 t.

2000.00

10 t.

1000.00

5 t.

500.00

3 t.

400.00

2 t.

400.00

1500 kg.

300.00

1000 kg.

300.00

500 kg.

300.00

300 kg.

200.00

250 kg.

200.00

200 kg.

100.00

150 kg.

100.00

100 kg.

100.00

50 kg.

100.00

30 kg.

100.00

25 kg.

60.00

20 kg.

60.00

15 kg.

30.00

10 kg.

30.00

5 kg.

30.00

3 kg.

30.00

2 kg.

30.00

1 kg.

15.00

500 g. and below

15.00

7. Non-Automatic Weighing Instruments- Electronic Class III & IIII :

Denomination

(1)

Fee per piece (Rs.)

(2)

400 t.

4000.00
300 t.
3000.00
200 t.
3000.00
150 t.
2000.00
100 t.
2000.00
80 t.
2000.00
60 t.
2000.00
50 t.
2000.00
40 t.
2000.00
30 t.
2000.00
25 t.
2000.00
20 t.
2000.00
15 t.
2000.00
10t.
1000.00
5 t.
1000.00
3 t.
500.00
2 t.
500.00
1500 kg.
250.00
1000 kg.
250.00
500 kg.
250.00
300 kg.
200.00
250 kg.
200.00
200 kg.
200.00
150 kg.
200.00
100 kg.
200.00
50 kg.
200.00

30 kg.
200.00
25 kg.
200.00
20 kg.
100.00
15 kg.
100.00
10 kg.
100.00
5 kg.
100.00
3 kg.
100.00
2 kg.
100.00
1 kg.
100.00
500 g. and below
100.00

8. (i) Not Automatic Weighing instruments both mechanical and electronics class I & II

Capacity

Fee (Rs.)

Exceeding 50 t.

3000.00

Not exceed 50 t. but exceed 10 t.

2000.00

Not exceed 10 t. but exceed 1 t.

1000.00

Not exceed 1 t. but exceed 50 kg.

500.00

Not exceed 50 kg. but exceed 10 kg.

250.00

Not exceed 10 kg.

200.00

8. (ii) Automatic Weighing Instrument :

Capacity

Fee in Rs.

Exceeding 100 t.

4000.00

Not exceeding 100 t. but exceeding 50 t.

3000.00

Not exceeding 50 t. but exceeding 10 t.

2000.00

Not exceeding 10 t. but exceeding 1 t.

1000.00

Not exceeding 1 t. but exceeding 50 kg.

500.00

Not exceeding 50 kg. but exceeding 10 kg.

250.00

Not exceeding 10 kg.

200.00

9. Volumetric measuring instruments :

(a)

Dispensing pumps each pump : Rs. 1000.00 per unit

(b)

Totalizing counter : Rs. 500.00 per unit

(c)

Other instruments :

Capacity

Fee in Rs.

Exceeding 100 t.

Rs. 500 for the 1st 100 litres plus Rs. 250 for every additional 100 litres or part thereof

Not exceeding 100 litre but exceeding 50 litre

500.00

Not exceeding 50 litre but exceeding 20 litre

250.00

Not exceed 20 litre

200.00

10. Flow meters :

Flow rate up to 100 litre/min.

Rs. 2000.00

Above 100 litre/min upto 500 litre/min

Rs. 3000.00

Above 500 litre/min.

Rs. 5000.00

11. Linear Measuring Instruments :

Taxi,

Autorickshaw metres

Rs. 100.00

Other metres

Rs. 50 for the 1st 1000 m. or part thereof

Plus Rs. 5.00 for every additional 100 m. or part thereof

12. Clinical Thermometer

Rs. 0.50 per unit

13. Water meter

Rs. 25.00 per unit

14. Peg Measure :

30 ml.

50.00

60 ml.

50.00

100 ml.

50.00

15. CNG Dispensers :

Rs. 1000.00 per unit

16. LPG Dispensers :

Rs. 1000.00 per unit

17. Counter Machine:

(i) Counter machine upto capacity 10 kg :

Rs. 20.00

(ii) Counter machine above capacity 10 kg. :

Rs.50.00

X

[See rule 26 (I)]

Form of appeal against an order of a Legal Metrology Officer/Controller Legal Metrology: -

1. Name and address of the appellant.
2. No. and date of order of Legal Metrology Officer/Controller of Legal Metrology against which the appeal is preferred.
3. Whether the appellant desires to be heard in person or through an authorized representative.
4. Grounds of appeal.

XI

[See rule 27]

Compounding sum for various offences.

Sl. No.

Section and nature of offence

Penal Section

Sum of Compounding fine/ amount

1.

S. 8(3) Use of weight, measure or numeration
other than the Standard weight, measure or numeration.

25

Rs. 2500.00

2.

S. 8(4) Manufacture of weight or measure not
conforming to Standards.

27

Rs. 2000.00

3.

S. 10 Transaction of dealing or contract in
respect of goods etc, by weight, measure or number than
prescribed.

28

Rs. 1000.00

4.

S. 11 Quote or made announcement or issue or
exhibit of price list or changing of price than in accordance
with standard unit of weight or measure or numeration.

29

Rs. 1000.00

5.

S. 12 Demanding or receiving any articles or
thing on service in excess or less than the quantity specified by
contract or agreement.

30

Rs. 1000.00

6.

S. 17 Maintenance of records, registers by
manufacturer, dealer or repairer and production of weight,
measure document, register on demand.

31

Rs. 500.00

7.

S. 18(1) Compliance of declaration in respect of pre-packaged commodity by manufacturer/ dealer.

36(1)

Rs. 2500.00

8.

S. 1(1) Compliance of net quantity requirement of pre-packaged commodity by manufacturer.

36(2)

Rs. 15000.00

9.

S. 23 Manufacturer of weight or measure only without licence.

45

Rs. 5000.00

10

S. 23 Repair/sale of weight or measure only without licence.

46

Rs. 2000.00

11.

S. 24 Use of unverified weight or measure in transaction or protection.

33

Rs. 5000.00

12.

S. 33 Sale of weight or measure without verification.

33

Rs.5000.00

13.

S.34 Sale or delivery of commodities by non-standards weights or measure

34

Rs. 2500.00

14.

S. 35 Rendering service by nonstandard weight or measure.

35

Rs.2500.00

15.

S.47 Tampering with licence.

47

Rs. 5000.00

16.

S. 53(3) Provision of any rule made under the Act.

53 (3)

Rs. 5000.00

Related AI tags, queries and research notes

Translation